

September 18, 2026, Civil Law & Motion Tentative Rulings

1. CL0003758 Alford Presser., Jr. vs. California Department of Transportation

Defendant California Department of Transportation's motion to set aside Plaintiff's entry of default is withdrawn from calendar. The Court approved a stipulation to grant this relief.

2. CU0001813 USA Bath California Remodeling, Inc. vs. David Sweat

Attorney James L. Arrasmith's motion to be relieved as counsel is granted.

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. *See Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). Cal. Rules of Court, rule 3.1362(a), (c), (e). The requisite forms must be served "on the client and on all parties that have appeared in the case." Cal. Rules of Court, rule 3.1362(d).

Attorney Arrasmith represents Defendant David Sweat. Arrasmith has filed Judicial Council Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). Arrasmith moves to be relieved as counsel, citing a deterioration of the working relationship with his client. Notice of the request has been served on the client and all parties. No opposition has been filed. The Court finds this to be proper grounds for withdrawal. *See Estate of Falco* (1987) 188 Cal.App.3d 1004, 1014 (a breakdown in the attorney-client relationship is grounds for allowing the attorney to withdraw).

An updated proposed order shall be lodged. This order will be effective only upon filing proof of service of the signed order upon the client at issue.

3. CU0001978 Bridgett Higginbotham vs. Pacific Specialty Insurance, et al.

Defendant Select Environmental's ("Select" or "Settling Defendant") unopposed motion for determination of good faith settlement is granted.

Legal Standard

"A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." Code Civ. Proc. § 877.6(c).

In making a good faith settlement determination, a trial court should "inquire, among other things, whether the amount of the settlement is within the reasonable range of the settling

tortfeasor's proportional share of comparative liability for the plaintiff's injuries.” *Tech-Bilt, Inc. v. Woodward-Clyde & Associates (Tech-Bilt)* (1985) 38 Cal.3d 488, 499. “The party asserting the lack of good faith shall have the burden of proof on that issue.” Code Civ. Proc., § 877.6(d).

“In the context of section 877.6, ‘[t]he trial court is given broad discretion in deciding whether a settlement is in “good faith” for purposes of section 877.6, and its decision may be reversed only upon a showing of abuse of discretion.’ ” *Cahill v. San Diego Gas & Electric Co.* (2011) 194 Cal.App.4th 939, 957.

The Tech-Bilt Factors as Applied to the Present Case

Settling Defendant requests the Court find its settlement with Plaintiff in the amount of \$4,500.00 was made in good faith based on its position the Settlement Agreement meets all the relevant *Tech-Bilt* factors.

Acknowledging that there is no precise method to determine whether parties entered into a good faith settlement, the Supreme Court in *Tech-Bilt* provided guidelines for determining whether a settlement is made in good faith. *Tech-Bilt, supra*, 38 Cal.3d at 495. Rather, the court must strike a balance between the public policy favoring settlements and the competing policy favoring equitable allocation of costs between tortfeasors. *Id.* at 498-99. To accomplish this, the *Tech-Bilt* court provided the following factors for determining whether a proposed settlement is based on good faith: (1) a rough approximation of plaintiff’s total recovery and the settling defendant’s proportionate liability; (2) the amount paid in settlement; (3) allocation of settlement amounts among plaintiffs; (4) recognition that a settlor should pay less in settlement than it would if it were found liable after trial; (5) financial conditions and insurance policy limits of the settling defendant; and (6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of non-settling defendants. *Id.* at 499-500. The burden of proof in asserting that a settlement lacked good faith falls upon the party making the assertion and it must show that “the settlement is so far ‘out of the ballpark’ in relation to these factors as to be inconsistent with the equitable objectives of [Code of Civil Procedure section 877.6].” *Ibid.*

At bar, Defendant Pacific Specialty Insurance Company (“PSIC”) previously opposed the motion, and the Court granted discovery for a limited period of time to allow the parties to gather sufficient factual information for the objecting non-settlor to carry its burden of proof as to any lack of good faith. 5/15/26 Minute Order. Prior to the present hearing, PSIC subsequently filed a notice of non-opposition to the motion, stating “after conducting and reviewing additional discovery, PSIC no longer contests the good faith of the settlement” and withdrew its previously filed opposition. PSIC Notice of Non-Opp, 2:5-9. Select’s counsel has submitted a supplemental declaration in support of its motion, stating Select responded to propounded discovery and provided evidence showing Select “performed its work...in accordance with the instructions and consent of Plaintiff”; that Select’s insurance coverage determined coverage would be provided; and that Plaintiff decided to proceed with the settlement as agreed even with the insurance coverage information. Maxwell Supp. Decl., ¶¶ 3, 6-7.

Settling Defendant has not submitted evidence in support of its motion; that said, non-settling Defendant PSIC has reviewed evidence causing it to withdraw any argument that the settlement amount would be grossly disproportionate or out of the ballpark of a reasonable settlement range.

Further, Select asserts the settlement was reached in good faith as an arm's length transaction. Maxwell Decl., ¶ 5. Finally, under Code of Civil Procedure section 877.6, "the party asserting the lack of good faith shall have the burden of proof on that issue." In the absence of any opposition to this motion, this burden has not been met.

Accordingly, the Court finds that the settlement was made in good faith.

**4. CU0002045 California Fair Plan Association vs. Gregory James Gallup
(deceased), et al.**

The Court grants the motion of Defendant Joan Gallup, Successor-in-Interest to the Estate of Gregory James Gallup, for judgment on the pleadings.

Requests for Judicial Notice

Defendant's unopposed requests for judicial notice are granted.

Legal Standard

A party may bring a motion for judgment on the pleadings ("MJOP") after filing an answer and the time to demurrer has expired. Code Civ. Proc. § 438(b)(1) and (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548. If the moving party is the defendant, then a MJOP is limited to the grounds the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. Code Civ. Proc. § 438(c)(1)(B). The grounds for a MJOP shall appear on the face of the pleading or from any matter judicially noticed. Code Civ. Proc., § 438(d). Essentially, a MJOP performs the same function as a general demurrer, *i.e.*, it attacks only the defects disclosed on the face of the pleading or by matters that are judicially noticed. *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999. "In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged." *Fire Ins. Exch. v. Super. Ct.* (2004) 116 Cal.App.4th 446, 452.

Discussion

Defendant argues that: California Fair Plan Association (CFPA), a plaintiff seeking damages allegedly caused by a decedent's negligence or breach, failed to file a timely creditor's claim; failed to allege in its complaint that it did so, and the liability of a successor-in-interest pursuant to Code of Civil Procedure section 377.40 exists only subject to Probate claim procedures. In opposition, Plaintiff argues Probate Code section 13550, *et seq.*, allows a suit against a surviving spouse for a deceased spouse's debts. Defendant has the better argument.

"An action may not be commenced against a decedent's personal representative on a cause of action against the decedent unless a claim is first filed as provided in this part [4. Creditor Claims] and the claim is rejected in whole or in part." Prob. Code § 9351. Thus, in general, a claim may not be pled against a decedent's estate, and a pending lawsuit against a decedent at time of death cannot be continued against the estate, unless the plaintiff has filed a creditor's claim in the probate proceedings. Prob. Code § 9000 *et seq.*